

Privacy Policy

Data Privacy and Security Agreement (DPSA)

This Data Privacy and Security Agreement ("Agreement") is entered into by and between LevelUp EdTech Enterprises LLC ("Provider") and the school, district, or educational organization listed in the signature block ("Subscriber"). This document establishes the protocols for the protection of Student Data and Personally Identifiable Information (PII) in accordance with 2026 industry standards and legal requirements.

1. Scope of Service

Provider provides a behavioral incentive and student rewards platform ("LevelUp Rewards"). To provide this service, certain data elements must be processed to track student progress, manage point ledgers, and facilitate check-ins.

2. Data Collection and Usage Rubric

The following outlines the data elements collected and the specific purpose for each as required by FERPA and COPPA guidelines.

- Student Identity: First Name, Last Initial, Grade Level — to identify participants in the rewards ledger.
- Behavioral Records: Points Earned, Reward Redemptions — core functional data for the incentive system.
- Technical Logs: IP Address, Browser Type, Login Timestamps — security monitoring and platform optimization.

3. 2026 Artificial Intelligence (AI) Compliance

LevelUp EdTech Enterprises LLC adheres to the 1EdTech Generative AI Data Rubric. We provide the following explicit guarantees:

- No Model Training: Student PII, behavioral logs, and teacher comments are NEVER used to train, fine-tune, or iterate upon any Large Language Models (LLMs) or generative AI systems.
- Data Isolation: All student data is stored in isolated environments. AI features (such as automated reward descriptions) are processed via "Zero-Retention" APIs where data is deleted immediately after the specific task is completed.

4. New York Education Law 2-d Supplemental Information

As a Brooklyn-based entity, Provider complies with New York State Education Law 2-d and the Parents' Bill of Rights.

- Storage Location: Google Cloud / Firebase (US-East Multi-Region).
- Encryption Standards: AES-256 at rest; TLS 1.3 in transit.
- Data Deletion Policy: Data is purged within 90 days of contract termination or upon written request.
- Authorized Sub-processors: Google Cloud Platform, Cloudflare Inc.

5. Breach Notification

In the event of an unauthorized release of Student Data, Provider will notify the Subscriber within seven (7) days of discovery and will cooperate fully with the Subscriber's data protection officer to mitigate any impact.

6. Execution

By signing below, the parties agree to be bound by the terms of this Agreement.

- Provider: LevelUp EdTech Enterprises LLC
- Signature: _____ Date: May 6, 2026
- Name: Dovid Teitelbaum Title: Managing Member
- Subscriber: [School/District Name]

• Signature: _____ Date: _____
• Name: _____ Title: _____